



Citation: Namin v. Allstate Insurance Company of Canada, 2022 ONLAT 20-009052/AABS -PI

Licence Appeal Tribunal File Number: 20-009052/AABS

In the matter of an application pursuant to subsection 280(2) of the *Insurance Act*, RSO 1990, c I.8, in relation to statutory accident benefits.

Between:

Roya Hasheminasab Namin

Applicant

and

Allstate Insurance Company of Canada

Respondent

PRELIMINARY DECISION

VICE-CHAIR:

Ian Maedel

APPEARANCES:

For the Applicant:

Kathy Noohi, Counsel
Vanessa Liang, Paralegal

For the Respondent:

Kevin Mitchell, Counsel

HEARD:

By Way of Written Submissions

BACKGROUND

- [1] The applicant was involved in an incident on **December 7, 2019** and sought benefits pursuant to the Statutory Accident Benefits Schedule - *Effective September 1, 2010 (including amendments effective June 1, 2016)* (“*Schedule*”). The applicant was denied certain benefits by the respondent and submitted an application to the Licence Appeal Tribunal - Automobile Accident Benefits Service (“*Tribunal*”).
- [2] A case conference was conducted on December 17, 2020. The respondent raised a preliminary issue of whether this incident was an “accident”, pursuant to s. 3(1) of the *Schedule*.
- [3] The substantive issues in dispute include income replacement benefits, the cost of a psychological assessment, the cost of drafting a Disability Certificate, attendant care benefits, an award, and interest.
- [4] Given the totality of the evidence provided, I am not persuaded the incident on December 7, 2019, was an “accident”, pursuant to s. 3(1) of the *Schedule*.

INCIDENT

- [5] On December 7, 2019, the 53-year-old applicant drove her Honda CR-V to an address in Aurora, Ontario, with the intention of viewing the residence for sale with her real estate agent. She was the driver and sole occupant of the vehicle.
- [6] After arriving at the property, she stopped the vehicle in the shared common driveway between the town-home style units, placed it in park, and turned the engine off. After waiting for approximately two minutes, she received a telephone call from her real estate agent. Her agent arrived and parked on the street in front of the residence.
- [7] Prior to parking her vehicle, the applicant observed snow on the ground on the asphalt driveway. The driveway was not shovelled nor salted.
- [8] The applicant was seated in the driver’s seat, opened the car door with her left hand, and placed her right hand on the door, placing both feet on the ground and stood up on the driveway.
- [9] With her right hand on the driver’s side door, she stepped out of the way of the driver’s side door in order to close it. She was facing the residence when she tried to close the driver’s side door of the vehicle. After closing the door, she

intended on walking towards the front door of the residence. She did not have any articles or bags in her hand when she exited the vehicle.

- [10] As she tried to close the door, she slipped and fell on ice that was underneath the snow on the driveway. She fell onto her left side. She did not impact the vehicle during her fall.
- [11] Witnessing the fall, her real estate agent attempted to assist the applicant, and eventually she was able to stand while holding onto the vehicle. A call was placed to 911 and the York Paramedic Services arrived. The applicant required assistance to ambulate to the stretcher. She was transported to the Southlake Regional Health Centre.
- [12] At the hospital, x-rays revealed she suffered a left femoral sub-capital neck fracture with mild impaction. On December 9, 2019, she underwent surgery where three cannulated screws were inserted into her hip to stabilize the fracture. She underwent physiotherapy and now walks with a cane. For more than a year following the incident she reported pain through the left hip and thigh.

PARTIES' POSITIONS

- [13] The applicant submits the two-part test as per *Greenhalgh v. ING Halifax Insurance Co.* ("*Greenhalgh*")¹ was met in this case. The purpose test was met, as she was attempting to exit the vehicle at the time of the incident. Exiting a vehicle is part of the ordinary and well-known activities to which automobiles are put. The causation test was similarly met, as it was the unsuccessful attempt to exit her vehicle that was the direct cause of her injuries. This fact scenario is akin to a moving vehicle that gets into an accident on an icy roadway.
- [14] According to the causation analysis, the but-for consideration screens out trivial acts that could not be the possible cause of the impairments. The applicant argued that, but for her unsuccessful attempt to exit the vehicle, the incident and her injuries would not have occurred. Snow is not otherwise an intervening act, as the applicant was still in the process of exiting the vehicle, and her attempt was not complete when the incident occurred. There was no break in the chain of causation leading to the applicant's injuries. The risk remained in her exit of the vehicle, and she had not transferred to an intervening act, such as walking.
- [15] She then submitted that the dominant feature in this matter was her unsuccessful attempt to exit the vehicle. The applicant submits she only had one leg out of the

¹ 2004 CanLII 21045 (ON CA).

vehicle when the fall occurred, and so her attempt at stepping out of the vehicle was concurrent with her slip and fall on the snowy driveway, resulting in her injuries. Otherwise, the risk posed by snow and ice is a foreseeable risk in the use and operation of a motor vehicle, and it should be covered by automobile insurance in a common-sense fashion.

- [16] The respondent submits that the applicant's clinical notes and records are of little assistance in establishing the mechanics of this incident. Rather, the respondent relies primarily on the applicant's testimony provided at an Examination Under Oath ("EUO") conducted on February 27, 2020. The applicant testified at the EUO that she had exited the vehicle, stood on the driveway, stepped out of the path of the driver's-side door, and was facing the residence when the fall occurred.
- [17] In relation to the two-part *Greenhalgh* test, the purpose test should be narrowly construed, as the vehicle was no longer being operated and she had exited. However, even if the purpose test is construed broadly, she does not meet the second part of the test regarding the ordinary and well-known activities being the direct cause of her impairments.
- [18] But for the ice and snow that had accumulated on the driveway, the incident would not have occurred. The intervening act consideration is to determine if some other act or event that cannot be said to be part of the ordinary course of things occurred to better explain the cause of the impairments. The event of the applicant's feet slipping on the ice and snow is the cause of her fall and consequential fracture. This fall had nothing to do with the use or operation of the vehicle. This is not otherwise a case of a vehicle being operated on a roadway in icy conditions when an accident occurred. Regardless, the applicant's contact with the driver's door was superficial and ancillary to the direct cause of the incident.
- [19] Further, the respondent added that all of the documentary evidence provided clearly notes that the slippery conditions of the driveway precipitated the applicant's fall. Slipping on snow and ice is not part of the ordinary course of things, it is an intervening act or event. The state of the driveway was the dominant and sole factor of her fall, and the impact with the ground caused her hip fracture. As a result, the respondent submits she has not met her onus to establish this was an accident as defined in s. 3(1) of the *Schedule*, and this application should be dismissed.
- [20] In reply, the applicant submits the respondent has misconstrued the purpose test, as the vehicle is not required to be operated at the time of the incident, only to be

used in the normal and well-known activities to which automobiles are put. Here, the applicant's unsuccessful attempt to exit the vehicle and the icy, snow-covered driveway directly caused the accident. The applicant's fall occurred while the applicant was still using the vehicle.

DEFINING AN "ACCIDENT"

- [21] Section 3(1) of the *Schedule* defines an "accident" as an "incident in which the use or operation of an automobile directly causes an impairment or directly causes damage to any prescription eyewear, denture, hearing aid, prosthesis or other medical or dental device".
- [22] If the incident is not found to be an "accident", then the applicant cannot apply for accident benefits through the *Schedule*.
- [23] As referenced above, both parties cite the decision in *Greenhalgh*, where the Court of Appeal for Ontario laid out a two-part framework that adjudicators should consider when making this determination:
- i. Did the incident arise out of the use or operation of an automobile?
 - ii. Did this activity directly cause the impairment?
- [24] This first stage is a determination of whether the incident involves the "ordinary and well-known activities to which automobiles are put". Or, put another way, for what "purpose was the vehicle being used at the time of the incident?" This stage is sometimes referred to as the "purpose test".
- [25] The second stage then requires the adjudicator to determine if these "ordinary and well-known activities" were the direct cause of the impairments, sometimes known as the "causation test". Though there is no mechanistic means of conducting this stage of the analysis, the case law generally focuses on the following factors: the "but for" consideration; the "intervening act" consideration; and the "dominant feature" consideration.
- The "but for" consideration screens out trivial acts and events that could not be a possible cause of the impairments;
 - The "intervening act" consideration asks the adjudicator to determine if some other event took place that can better explain the cause of the impairments; and
 - Finally, when faced with a number of possible causes, the "dominant

feature” consideration focuses on whether the ordinary and well-known activity at issue is what “most directly caused the injury”.

- [26] Regardless of the analytic tools at an adjudicator’s disposal, the ultimate question has to be whether the incident “directly causes an impairment or directly causes damage to any prescription eyewear, denture, hearing aid, prosthesis or other medical or dental device”. Without this causal link, there is no “accident”.
- [27] Additionally, the case of *Webb v. Wawanesa Mutual Insurance Company Co.* (“*Webb*”), reminds the decision-makers to apply the definition of an “accident” in a common-sense fashion that focuses “on the nature of the risk covered by automobile insurance”². Though I am not bound by arbitration decisions of the Financial Services Commission of Ontario, I find this case to be persuasive in my analysis.

ANALYSIS

Purpose Test

- [28] I am satisfied this incident arose from the ordinary and well-known activities to which automobiles are put. I find the incident comprised the larger activity of exiting or alighting from the vehicle. The applicant had just exited the vehicle at the time her fall occurred. I accept the evidence that prior to her exiting the vehicle, she had stopped the vehicle, turned the engine off, and was waiting for her real estate agent on the driveway where the fall occurred.
- [29] I accept the applicant’s evidence as provided at the EUO on February 27, 2020. The evidence at the EUO is the most reliable and only sworn witness account of the incident. I am not otherwise persuaded that the Ambulance Call Report by York Regional EMS or the other clinical notes and records are a more accurate account of the events, as the applicant submits. I am not satisfied that the applicant’s evidence was otherwise impacted by the three-month time gap between the accident and the EUO undertaken. Given the strength of the applicant’s testimony at the EUO, I am not otherwise persuaded that she had only her left leg outside of the vehicle, or that she did not impact the asphalt, as she later provided in her submissions.
- [30] Despite my reliance on the EUO, I would also note that none of the contemporary medical records relied upon characterized this incident as an accident involving a vehicle. It was characterized as a fall, including the Ambulance Call Report which

² [2012] O.F.S.C.D. No. 102, at para. 70.

indicated mechanism of injury was a fall, caused by slip.³ Similarly, the Southlake Regional Health Center's records indicated it was a "mechanical fall on an icy driveway"⁴ and Dr. Randle, Orthopaedic Surgeon who performed her hip surgery indicated the applicant "slipped and fell outside a home".⁵ It was only Dr. P. Malakzadeh, Endocrinologist, who on December 4, 2020 (almost a year post-accident) noted that she previously suffered a left hip fracture "when coming off the car on ice" when citing her medical history during an unrelated consult exploring a thyroid nodule.⁶ Thus, I place little weight upon the applicant's submissions that these records are otherwise determinative in relation to the mechanics of the incident.

- [31] I was provided with photographic evidence taken at the scene by the applicant's Real Estate Agent, Mehrnoosh Najibzadeh, on December 7, 2019. Although there are only three photos, they clearly depict the applicant's white Honda CR-V in the driveway of the residence. Particularly noticeable was the accumulation of several centimeters of snow on the driveway and what appears to be iced-over ruts from tire tracks immediately next to the driver's side of the vehicle.⁷ This supports Ms. Najibzadeh's written statement that the driveway was very slippery and covered in snow and hardened ice.⁸ Thus, I place weight on this photographic evidence and statement as an accurate depiction of the driveway conditions on the date of the incident.
- [32] Despite my finding that she had just exited from the vehicle as per the ordinary use of an automobile, meeting the purpose test. I do not find the applicant meets the second stage of the *Greenhalgh* framework, or the causation test.

Causation Test

- [33] Again, there is no mechanistic analysis at play in this second stage, such that meeting a certain number of the three considerations will render an event to be an "accident". Instead, these tools are meant to be used in a common-sense fashion to allow a decision-maker to effectively analyze the particular factual matrix at issue. Further, I am not bound by the Tribunal case law before me, as these cases are highly fact specific. Otherwise, I have reached my own conclusions based on a comprehensive review of the facts before me, assisted

³ The Applicant's Submission, Tab 1, York Paramedic Services, Ambulance Call Report, December 7, 2019.

⁴ The Applicant's Submission, Tab 4, Clinical Notes and Records from Dr. Eftekhari, December 7, 2019.

⁵ Ibid. December 9, 2019.

⁶ Ibid. December 4, 2020.

⁷ Document Brief of the Respondent, Tab 1.

⁸ Document Brief of the Respondent, Tab 12.

by the binding and persuasive case-law.

- [34] I find the applicant has met the low threshold of the “but for” test. As the applicant stated in her submissions, the incident and subsequent injuries would not have happened “but for” her exit from her vehicle. However, as noted in *Greenhalgh*, the “but for” test does not conclusively establish legal causation⁹.
- [35] I do not then find the “intervening act” analysis helpful with regard to the factual matrix of this matter. This is especially in light of the applicant’s submissions regarding the continual sequence of events. This included the operation of the motor vehicle, her exiting the vehicle, and her intent to enter the residence.
- [36] However, despite the above findings, I conclude that the “dominant feature” consideration is the most helpful tool in determining whether this particular incident is an “accident”. That is, I am satisfied that to answer this incident is an “accident”, it is helpful to determine if the operation and use of the motor vehicle was the “dominant feature” of the incident.
- [37] As described in *Greenhalgh*, the dominant feature consideration requires an adjudicator to determine what element of an incident is “the aspect of the situation that most directly caused the injuries.”¹⁰ For instance, in *Greenhalgh*, the incident involved the insured person suffering from severe frostbite after getting her vehicle stuck on a country road. In dismissing the claim of an “accident” Justice Labrosse found, that “the ‘dominant feature’ of the insured’s injuries could be best characterized as exposure with the elements, and that the use of the motor vehicle was ancillary to that injury.”¹¹
- [38] This type of analysis is dictated by the specific factual matrix of the incident. I am satisfied the dominant feature of this incident was the applicant slipping and falling on the snow and ice outside of her vehicle. This was not an incident where the applicant was seated in the vehicle and attempting to exit. According to her own testimony provided at the EUO - she had reached her destination, opened the driver’s side door, put both of her legs outside, and had exited the vehicle.¹² She was standing beside the vehicle, facing the residence, and then stepped out of the way of the driver’s side door in order to close it, when the incident occurred.¹³ She could not recall whether her hand was still touching the driver’s

⁹ *Greenhalgh*, at para. 37.

¹⁰ *Greenhalgh* at para. 49.

¹¹ *Ibid.*

¹² Document Brief of the Respondent, Tab 10, EUO Transcript of Claimant, dated February 27, 2020, at pp. 15-16.

¹³ *Ibid.*, pp.18-24.

side door.¹⁴ When specifically asked about the reason for her fall, the applicant stated it was because the driveway was slippery, there was ice under the snow, and the homeowners had not shovelled or salted.¹⁵ This testimony clearly indicates that at the moment she fell, her only connection to the vehicle was the open driver's-side door. This testimony was bolstered by the contemporaneous medical records cited above, which all characterized the incident as a slip and fall, rather than a car accident. These accounts mirror my findings that the dominant feature was not the use of the vehicle, but rather the icy driveway.

- [39] Having the car door open was not the dominant feature of this incident, but rather it was the snow and ice accumulated on the asphalt driveway. As in *Porter v. Aviva Insurance Company of Canada*¹⁶, the operation or use of the vehicle was ancillary, as it was the slippery driveway that caused her injuries, not the use of vehicle prior to closing the door. It is also clear from the sworn EUO testimony that the applicant did not impact the vehicle in any way as part of her fall, and that her hip fracture was caused solely by her impact with the slippery asphalt of the driveway.¹⁷
- [40] In my analysis, I must return to the ratio in *Webb*, by applying the definition of an “accident” in a common-sense fashion that focuses on the nature of the risk covered by automobile insurance. The applicant submits that this slip and fall is akin to operation of a motor vehicle on an icy road. I disagree. Slip and fall incidents that occur within close proximity of a motor vehicle after an occupant has exited and ceased using the vehicle are not a foreseeable risk that should otherwise be covered by contracts of automobile insurance. In this case, I am satisfied that the risk associated with using a vehicle had shifted to the risk of standing or walking on icy ground just prior to her fall.
- [41] Thus, based on the totality of the evidence, I am satisfied the incident on December 7, 2019 was a slip and fall on an icy, snow-covered driveway, rather than an “accident” as defined in s. 3(1) of the *Schedule*.

ORDER

- [42] I find that:

- i. The applicant has not demonstrated the incident on December 7, 2019

¹⁴ Ibid. pg. 29.

¹⁵ Ibid. pg. 26.

¹⁶ 2021 ONSC 3107.

¹⁷ Document Brief of the Respondent, Tab 10, EUO Transcript of Claimant, dated February 27, 2020, at pp. 30-21.

constituted an “accident”, as defined in s. 3(1) of the *Schedule*.

- ii. The application shall be dismissed, and the Tribunal file shall be closed.

Released: August 3, 2022

Ian Maedel
Vice-Chair